

		The Court will thus CONTINUE the hearing on the motion as stated above to allow Plaintiff to file the FAC. The Court will then rule on the motion based on the operative FAC. The parties are permitted to file supplemental briefs to address the real property claim as alleged in the FAC. Plaintiff's supplemental brief is due on or before October 1, 2026. Defendants' supplemental brief is due on or before October 8, 2026. <i>Plaintiff shall give notice of these rulings.</i>
5.	Potter v. Gustafson 26-1554580	Defendant Dicker & Dicker, LLP's ("Firm") Special Motion to Strike ("Motion") plaintiff Jeffrey Potter's ("Plaintiff") Complaint is GRANTED in part and DENIED in part. As an initial note, the court recognizes Plaintiff's ongoing allegation that Firm did not serve the Motion on Plaintiff's counsel. This hearing previously came before the court on 07/30/26 and Plaintiff was given the opportunity to continue the hearing to provide additional time for Plaintiff to prepare an opposition. Plaintiff selected that option and was able to file a timely opposition. The court will therefore proceed on the merits. Firm moves to specially strike the complaint pursuant to <i>Civ. Proc. Code § 425.16</i>. In such motions a plaintiff's claim must 1) arise out of a defendant's protected speech or petitioning; and 2) lack even minimal merit. (<i>Navellier v. Sletten</i> (2002) 29 C4th 82, 88-89 ("<i>Navellier</i>"); <i>Jarrow Formulas, Inc. v. LaMarche</i> (2003) 31 C4th 728, 733.) "Only a cause of action that satisfies both prongs of the anti-SLAPP statute-<i>i.e.</i>, that arises from protected speech or petitioning and lacks even minimal merit-is a SLAPP, subject to being stricken under the statute." (<i>Navellier, supra</i>, 29 Cal. 4th at 89.) A) The Complaint Arises Out of Protected Activity "A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, "the defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech." [Citations.] "[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute." (<i>Navellier, supra</i>, 29 Cal.4th at 89, 124 Cal.Rptr.2d 530; see <i>City of Cotati</i>, at p. 78, 124 Cal.Rptr.2d 519 [suit may be in "response to or in retaliation for" protected activity without necessarily arising from it].) Instead, the focus is on determining what "the defendant's activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning." [Citation.] "The only means specified in section 425.16 by which a moving defendant can satisfy the ['arising from'] requirement is to demonstrate that the defendant's conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)...." [Citation.] In short, in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those

elements and consequently form the basis for liability.” (*Park v. Bd. of Trustees of California State Univ.* (2017) 2 Cal. 5th 1057, 1062–63.)

Firm argues the issues in the complaint arise out of protected activity and were related to small claims court actions Plaintiff filed against Defendants’ then clients. Gustafson was in court to assist the clients in those matters and the binders that Plaintiff allegedly claimed were thrown at him contained trial exhibits. Gustafson states Plaintiff had refused multiple times to accept the binders which the court had ordered exchanged, and that Gustafson did not throw the binders at Plaintiff but rather set them down on a table next to Plaintiff. Gustafson admits that when he provided the binders to Plaintiff he stated, “Here are your fucking exhibits.”

“Under the plain language of section 425.16, subdivisions (e)(1) and (e)(2), as well as the case law interpreting those provisions, all communicative acts performed by attorneys as part of their representation of a client in a judicial proceeding or other petitioning context are per se protected as petitioning activity by the anti-SLAPP statute.” (*Cabral v. Martins* (2009) 177 Cal. App. 4th 471, 479–80.) The verbal communication regarding exhibits, though with an improper expletive, would be protected. The additional action of providing the exhibits, either by throwing them or dropping them on a table, are related to the protected conduct as well as they were performed in connection with an issue under consideration or review by a judicial body. For the first step in the analysis, it appears Gustafson’s actions were related to any issue under judicial consideration. Firm has met its initial threshold burden on the Motion and the burden transfers to Plaintiff to show merit as to each cause of action (“COA”).

Firm also argues the litigation privilege applies pursuant to *Civ. Code* § 47(b). Under that code section, a privileged publication or broadcast is one made in any judicial proceeding. Even if the alleged actions taken by Gustafson might fall under the litigation privilege, they are “not protected under the anti-SLAPP statute because the litigation privilege and the anti-SLAPP statute are substantively different statutes that serve quite different purposes, and it is not consistent with the language or the purpose of the anti-SLAPP statute to protect such threats.” (*Flatley v. Mauro* (2006) 39 Cal. 4th 299, 322.) Illegal acts are not protected under anti-SLAPP. (*Id.*, at 324-25.)

Although the litigation privilege does not appear to bar the action, Firm has sufficiently shown the alleged actions of Gustafson meet its initial burden. The burden on the Motion transfers to Plaintiff.

B) Plaintiff’s Transferred Burden

“If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a “summary-judgment-like procedure.” [Citation.] The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and

made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. [Citation.] " [C]laims with the requisite minimal merit may proceed." " (Baral v. Schnitt (2016) 1 Cal. 5th 376, 384–85.)

"In opposing an anti-SLAPP motion, the plaintiff cannot rely on the allegations of the complaint, but must produce evidence that would be admissible at trial." (HMS Cap., Inc. v. Laws. Title Co. (2004) 118 Cal. App. 4th 204, 212.) "Whether plaintiffs have established a prima facie case is a question of law." (Id.)

"Only a cause of action that satisfies both prongs of the anti-SLAPP statute—i.e., that arises from protected speech or petitioning and lacks even minimal merit—is a SLAPP, subject to being stricken under the statute." (No Doubt v. Activision Publ'g, Inc. (2011) 192 Cal. App. 4th 1018, 1026.)

1) COA No. 1 – Assault

"The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." (So v. Shin (2013) 212 Cal. App. 4th 652, 668–69.)

In the original declaration, Plaintiff stated Gustafson stood and advanced toward Plaintiff and then threw a large binder of trial exhibits toward Plaintiff. (Potter Decl. ¶ 5.) After Gustafson threw the binder, he raised a fist in a threatening manner and yelled at Plaintiff words to the effect of "fuck you Potter, I am going to get you." (Potter Decl. ¶ 6.) Given Gustafson's size, the confined space, his abrupt advance, raised fist and manner in which Gustafson positioned himself, and the way Gustafson threw the binder, Plaintiff believed he was about to be struck. (Potter Decl. ¶ 7.) As the result of Gustafson's conduct, Plaintiff allegedly "suffered physical injuries including neck strain, exacerbation of pre-existing back conditions, chest pain, heart palpitations, and limitation of motion, as well as severe emotional distress requiring therapy." (Potter Decl. ¶ 12.) Plaintiff's complaint has also alleged that at all relevant times, Gustafson was employed by Defendant or retained Gustafson as an agent or representative for its client against Plaintiff. (Complaint ¶ 5.)

Plaintiff has shown this cause of action has merit. The Motion is **DENIED** as to this COA.

2) COA No. 2 – Battery

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal. App. 4th 652, 669.)

Battery requires an actual touching of the Plaintiff by Gustafson. Nothing in Plaintiff's declaration indicates Gustafson personally touched Plaintiff or that the binder touched Plaintiff. As such, there is no battery and this COA lacks even minimal merit, and the Motion is **GRANTED** as to this COA.

3) COA No. 3 – Negligent Hiring, Supervision, and Retention

"To prevail on his negligent hiring/retention claim, [plaintiff] will be required to prove [employee] was [defendant employer]'s agent and [defendant employer] knew or had reason to believe [employee] was likely to engage in [misconduct]. On the negligent supervision and failure to warn claims, [plaintiff] will be required to show [defendant employer] knew or should have known of [employee]'s alleged misconduct and did not act in a reasonable manner when it allegedly recommended him to serve as [plaintiff]'s Bible instructor." (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 591.)

"An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit. [Citation.]" [Citation.] Negligence liability will be imposed upon the employer if it "knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. [Citation.] As such, "California follows the rule set forth in the Restatement Second of Agency section 213, which provides in pertinent part: 'A person conducting an activity through servants or other agents is subject to liability for harm resulting from his conduct if he is negligent or reckless: ... [¶] (b) in the employment of improper persons or instrumentalities in work involving risk supervision and/or retention of an employee is one of direct liability for negligence, not vicarious liability.'" (*Delfino v. Agilent Techs., Inc.* (2006) 145 Cal. App. 4th 790, 815 ("Delfino").)

Plaintiff's declaration provides no facts or evidence regarding Firm ever knowing or having reason to believe Gustafson engaged or would engage in misconduct. The declaration did not show any facts or evidence that Firm knew about Gustafson's alleged tendencies toward misconduct and did not act in a reasonable manner.

Although Plaintiff stated an intent to move for discovery in support of this COA, *Civ. Proc. Code* § 425.16(g) stays discovery proceedings unless a properly noticed motion showing good cause is filed. As Plaintiff has not filed any such motion, the alleged lack of evidence does not support continuing the present Motion.

This COA lacks even minimal merit, and the Motion is **GRANTED**.

4) COA No. 4 – Physical Elder Abuse

Physical abuse of an Elder includes, among other things, assault and battery. (*Welf. & Inst. Code §§ 15610.63 and 15657.*) Plaintiff has stated he is 72 years old, which qualifies as an elder under the code. (Potter Decl. ¶ 1.) Plaintiff needs to show recklessness, oppression, fraud, or malice in the commission of the abuse to show minimal merit for this COA.

"Plaintiffs must plead and prove something more than negligence—that is, reckless, oppressive, fraudulent, or malicious conduct. [Citation.] "The latter three categories involve 'intentional,' 'willful,' or 'conscious' wrongdoing of a 'despicable' or 'injurious' nature." [Citation.] Recklessness is "a subjective state of culpability greater than simple negligence, which has been described as a 'deliberate disregard' of the 'high degree of probability' that an injury will occur. [citations.] Recklessness, unlike negligence, involves more than 'inadvertence, incompetence, unskillfulness, or a failure to take precautions' but rather rises to the level of a 'conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.'" (Fenimore v. Regents of Univ. of California (2016) 245 Cal. App. 4th 1339, 1347 [Regarding medical care providers].)

Plaintiff has pled no facts supporting the fraud or oppression requirements.

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (*Civ. Code § 3294(c)(1).*)

"Recklessness" is defined as, "[c]onduct whereby the actor does not desire harmful consequence but nonetheless foresees the possibility and consciously takes the risk." (RECKLESSNESS, *Black's Law Dictionary* (12th ed. 2024).)

As noted above, Plaintiff's cause of action for assault had sufficient merit to defeat the Motion. Plaintiff has also pled sufficient facts to support recklessness and/or malice related to the alleged assault. A cause of elder abuse based upon assault also has sufficient merit.

Plaintiff's COA for battery does not have even minimal merit.

The Motion is **DENIED** as to this COA based upon assault but **GRANTED** as to this COA based upon battery.

Firm's objections are **SUSTAINED** as to nos. 1-2 (irrelevant); 3-4 (hearsay).

Firm to give notice.